

Unit - 2

2

Various Types of IPR and its Economic Impact

Syllabus

Introduction to different types of IPR patents, Industrial Designs, copyrights, trademarks, trade secrets, Geographical Indications and Plant Varieties. Real world case studies highlighting the economic impact of each type of IPRs.

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2.1 Introduction to Intellectual Property Rights (IPR) Patents

- In the modern knowledge-driven economic development, innovation (IPR) are essential for encouraging economic development, which provide creative ideas. One of the key components of IPR is patents, which provide exclusive rights to inventors and creators, allowing them to protect their innovative ideas from unauthorized use, copying or distribution.
- Intellectual property rights comprise constitutional right derived from intellectual creations from unauthorized use, copying or distribution. These rights provide effort in the sectors of science, literature and the arts. These rights provide inventors as well as producers of intellectual products and services by providing them certain restricted in time rights to govern their usage. Protected intellectual property rights, like any other property, can be traded, possessed, sold or purchased. These are intangible, non-exhausted forms of consumption.

Background

- Patents originated in ancient Greece, when innovators were awarded sole copying rights to their innovations. However, the modern patent system emerged in the 15th century in Italy and later spread to other parts of Europe. Today, patents are recognized and protected globally, with the World Intellectual Property Organization (WIPO) playing a key role in promoting and protecting intellectual property rights worldwide.

2.2 Types of IPR Patents

There are several types of IPR patents, each designed to protect different types of innovative ideas and creations. These include :



The first telephone was invented and patented by Alexander Graham Bell in 1876.

US Patent Number 174,465

(a) Patent of telephone



Bluetooth as an option for data transfer.

Wireless Technology

Invented by : Jaap Haartsen

US Patent No. : 6,590,928

(b) Patent of Bluetooth

Fig. 2.2.1

1. Utility patents :

- Utility patents, also referred to as "the patents for innovation," are a form of patent that covers novel and useful processes, machinery, manufacturing methods or material compositions. These patents are intended to foster creativity and inventiveness by granting complete rights to researchers and creators. Utility patents are frequently the most common type of patent and they are believed to be the core of the patent system.

- Consider a firm that has created a new and creative method of purifying water by combining filters and chemicals. This corporation can seek a utility patent that will safeguard its idea. If approved, the patent will allow the corporation exclusive rights to produce and sell the water filtration system over a period of two decades starting the date of filing. This would prohibit other firms from replicating or utilizing similar technology without authorization, allowing the corporation to recoup its R&D expenditure while still profiting from its innovation.

- Another example is a tech company that has developed a new and improved algorithm for searching and retrieving data from large databases. This corporation can file for a patent that grants utility to safeguard its algorithm. If

the patent is approved, the corporation will have sole licenses to use it. Hence the algorithm over a period of two decades following the date of filing. This would prevent other companies from using the same algorithm without permission, allowing the company to maintain a competitive edge in the market.

2. Design patents :

- The decorative design of a useful object is protected by design patents, a kind of intellectual property law. These patents safeguard a product's distinctive and imaginative design elements, including its form, look and general aesthetics. Design patents are essential for companies that invest significant time and resources into creating innovative and visually appealing products.

- For example, suppose a firm that has created a new and revolutionary smartphone with a distinct form and interface. To protect the smartphone's decorative design, the manufacturer can file a design patent application. The business would have the only right to produce and market cellphones using a similar design for 15 years from the award date if the design patent was approved. This would prevent other companies from copying or using the same design without permission, allowing the company to maintain a competitive edge in the market.

- Another example is a company that has designed a new and innovative Graphical User Interface (GUI) for a software application. To protect the GUI's decorative design, the corporation can file a design patent application. The firm would have the only right to employ and license the GUI designs for 15 years after the date of issuance if the design patent was approved. This would prevent other companies from using the same GUI design without permission, allowing the company to maintain a unique and recognizable brand identity.

- In each of these cases, a design patent is an effective instrument for protecting the distinctive and creative characteristics of the design of an item. By providing exclusive rights to the design, design patents help to encourage innovation and creativity, while also ensuring that companies are rewarded for their investment in design and product development.

3. Plant patents :

- Plant patents are a sort of protection for intellectual property that protects new and unique plant species, including hybridized or genetically modified crops

These patents provide exclusive rights to the inventor or breeder of the new plant variety, allowing them to control the reproduction, sale and distribution of the plant for a period of two decades initiated from filing date.

- For example, let's consider a company that has developed a new and innovative variety of corn that is resistant to drought and pests. The business may safeguard its novel maize variety by submitting an application for a plant patent. If granted, the plant patent would give the company exclusive rights to reproduce, sell and distribute the corn variety for a period of 20 years from the date of filing. This would prevent other companies from reproducing or selling the same corn variety without permission, allowing the company to recoup its investment in research and development and profit from its innovation.

- Another example is a university researcher who has developed a new and distinct variety of rose that has a unique fragrance and color. The researcher can apply for a plant patent to protect the new rose variety. If granted, the plant patent would give the researcher exclusive rights to reproduce, sell and distribute the rose variety for a period of 20 years from the date of filing. This would prevent other nurseries or florists from reproducing or selling the same rose variety without permission, allowing the researcher to profit from their innovation and invest in further research and development.

- In both of these examples, the plant patent provides a powerful tool for protecting new and distinct plant varieties. By providing exclusive rights to the inventor or breeder, plant patents help to encourage innovation and investment in plant breeding and research, while also ensuring that inventors and breeders are rewarded for their hard work and ingenuity.

4. Reissue patents :

- Reissue patents are a type of patent that is issued to correct errors or defects in an original patent. These patents are designed to provide a second chance for inventors to correct mistakes or omissions in their original patent application. Reissue patents can be broader or narrower in scope than the original patent, depending on the nature of the correction.

- For instance, suppose a company, GreenTech, was granted a patent for a innovative solar panel design. However, after the patent was granted, the company discovered that one of the claims in the patent was too narrow, and did not adequately protect the invention. To correct this error, GreenTech can

apply for a reissue patent. If granted, the reissue patent would broaden the scope of the original patent, providing greater protection for the solar design.

- On the other hand, suppose a company, MedDev, was granted a patent for a medical device, but later discovered that one of the claims in the patent was too broad and infringed on existing technology. To correct this error, MedDev can apply for a reissue patent. If granted, the reissue patent would narrow the scope of the original patent, avoiding infringement on existing technology while still protecting the unique aspects of the medical device.

- In both cases, the reissue patent provides a valuable opportunity for inventors to correct errors or defects in their original patent and to ensure that their invention is adequately protected.

5. Provisional patents :

- Provisional patents are a type of temporary patent that allows inventors to file for a utility patent within one year. This temporary patent provides a "patent pending" status, which can be beneficial for inventors who want to test the invention, gather feedback and make improvements before committing to the costly and time-consuming process of obtaining a utility patent.

- For example, let's consider an inventor, Emma, who has developed a new innovative smartwatch design. Emma wants to test her design in the market, gather feedback from potential customers and make improvements before applying for a utility patent. To do this, Emma can file for a provisional patent, which would give her a temporary "patent pending" status for one year. During this time, Emma can refine her design, gather feedback and make improvements without worrying about someone else copying her idea. If Emma decides to move forward with her invention, she can file for a utility patent within one year of filing the provisional patent and the utility patent will be considered to have been filed on the same date as the provisional patent.

- Another example is a startup company, GreenCycle, that has developed a new and innovative recycling technology. GreenCycle wants to test its technology in the market, gather feedback from potential customers and make improvements before applying for a utility patent. To do this, GreenCycle can file for a provisional patent, which would give the company a temporary "patent pending" status for one year. During this time, GreenCycle can refine

technology, gather feedback and make improvements without worrying about someone else copying its idea. If GreenCycle decides to move forward with its technology, it can file for a utility patent within one year of filing the provisional patent and the utility patent will be considered to have been filed on the same date as the provisional patent.

- In both examples, the provisional patent provides a temporary "patent pending" status, which allows inventors to test their ideas, gather feedback and make improvements without worrying about someone else copying their idea. This temporary patent also provides a cost-effective and efficient way for inventors to protect their ideas while they refine and develop their inventions.

In conclusion, each of the types of patents discussed, including utility patents, design patents, plant patents, reissue patents and provisional patents, plays a vital role in promoting innovation, creativity and economic growth. By providing exclusive rights to inventors and creators, these patents protect innovative ideas and creations from unauthorized use, copying or distribution.

The protection offered by these patents encourages inventors and creators to invest time, money and effort in developing new and innovative ideas, knowing that their work will be protected and that they will be able to reap the benefits of their creativity. This, in turn, drives innovation, creativity and economic growth, as new and improved products, processes and services are developed and brought to market.

Furthermore, the exclusive rights provided by these patents allow inventors and creators to control the use of their innovations, enabling them to decide how their inventions are used, manufactured and distributed. This control also enables them to prevent others from making, using or selling their inventions without permission, thereby protecting their intellectual property rights.

In addition, the protection offered by these patents promotes competition, as inventors and creators are incentivized to develop new and innovative ideas that are better than existing ones. This competition drives innovation and improvement, leading to the development of new and improved products, processes and services that benefit society as a whole.

In summary, each of the types of patents discussed plays a critical role in promoting innovation, creativity and economic growth, by providing exclusive rights

- As long as the knowledge is kept private and not made public, trade secret protection may last eternally. To be eligible for trade secret protection, the information must be confidential, valuable and not publicly known.
- Confidential business knowledge that gives a company a competitive advantage may be termed a trade secret. Typically, they are manufacturing industrial and commercial secrets. These include sales and distribution methods, customer profiles, advertising tactics, supplier and client lists and production procedures. Trade secrets, unlike patents, are protected even without registration. It is possible to secure a trade secret for an indefinite amount of time, but there must be a significant degree of secrecy such that it would be impossible to obtain the knowledge without using incorrect methods.

c) Copyrights and associated rights :

- The legal word "copyright" refers to the rights that authors and artists are granted for their creative works. The following types of works are protected by copyright : Databases, movies, music compositions and dances; architectural designs, paintings, drawings, photographs and sculptures; advertisements, maps and technical drawings; and literary works, such as stories, poems, plays, and reference books, newspapers and computer programs. Copyright exists in an asset by virtue of its creation; hence, registration is optional.
- Nonetheless, registering a copyright proves that the work is owned by the inventor and that copyright exists in it. Authors frequently offer access to their creations to the people or businesses that can promote them the best in exchange for money. These payments are frequently provided in response to the actual usage of the work and are known as royalties. These commercial rights are limited to the lifetime of the inventor plus sixty years following their passing, with the exception of photos.

d) Geographical Indications (GI) :

- Geographical Indications (GIs) are a type of IP that protects the names of places or regions that are associated with specific products or services. GIs can include names of wines, cheeses and other agricultural products. GI protection prevents others from using the same name or indication to sell similar products. GI are marks used on items that have a certain geographical origin and exhibit

have characteristics that stem from their area of origin and are impacted by unique geographical elements including climate and soil. They may also emphasize unique aspects of a product that are caused by human variables that may be found in the product's area of origin, such as manufacturing skills and practices. A geographical indicator refers to a specific location or territory of production that establishes the unique characteristics of the goods that originated there.

Darjeeling tea



Makrana marble



Kalpatis of Rajasthan



Kancheepuram silk



Ratami sev



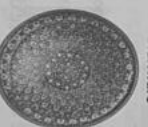
Warli painting



Bengal patachitra



Bidiware



Magahi paan



Shahi litchi of Bihar



Kashmir saffron



Coorg orange



Fig. 2.3.2 Various examples of Geographical Indications (GI)

- It is critical that the product acquire its attributes and reputation from the location. The place of origin might be a hamlet or town, a region, or even a

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- nation. Every member of the community benefits from its registration since a unique entitlement granted to that community. The GIs of products such as wet grinders, kullu shawls, and Chanderi saris have just been registered.
- Geographical indicators in India are legally protected by GI, which also allows anyone from using registered geographical indications in India encourages export. Legal protection for producers of items produced inside a geographical region fosters economic success for producers of items produced inside a geographical region.



Fig. 2.3.3 More examples of Geographical indicators

e. Industrial designs :

- A design right is a unique or distinctive design that is granted to the owner of a correctly registered design. Industrial designs are creative endeavors that produce an ornamental or formal look. Industrial designs are part of intellectual property. The TRIPS agreement established minimal requirements for the protection of industrial designs. India is a developing nation that has made changes to its national laws to include these basic requirements.
- The primary goal of design legislation is to encourage and safeguard the development of industrial production. It also aims to encourage industry innovation. The new designs act, 2000, is India's existing regulation.

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industrial designs and it will serve its purpose effectively in the face of fast technological and international progress.

Integrated circuit layout design :

- A semiconductor integrated circuit is a product that contains transistors and other circuitry components that are embedded in an insulating material, on a semiconductor or inside a semiconductor and are intended to carry out an electronic circuit function. Protecting intellectual property rights (IPR) in the field of semiconductor design of integrated circuit layouts and for things related or incidental thereto is the goal for the semiconductor integration circuits pattern-design act 2000. The primary goal of the SICLD act is to establish pathways and mechanisms for protecting intellectual property rights in chip layout designs and associated topics.

2.4 Copyrights

- Copyrights are intellectual property rights that protect original literary, theatrical, musical and creative works. The only authority to duplicate, circulate and exhibit the piece of work and even to make derivative works, is granted by copyrights.
- The protection of copyright extends to both published and unpublished works of literature, science and art. It has to do with having the sole right to perform or grant permission to perform specific acts in connection with original works of literature, drama, sound recording, music and art (such as paintings, photographs, architectural designs and artistic craftsmanship), as well as cinematographic films, software programs and other works that are fixed in a material or tangible form. It is a compendium of rights that can be exercised individually.
- Infringement occurs when an author's work is copied or reproduced without permission. The copyright act of 1957 went into force in January 1958. Since that time, the act has undergone five amendments : in the year 1983, 1984, 1992, 1994, 1999, and 2012. The primary reasons for amending the copyright act of 1957 are to bring the act into compliance with two world intellectual property organization internet treaties signed in 1996, namely the WIPO Copyright Treaty ("WCT") and the WIPO Treatment of Performances and Phonograms ("WPPT"), in order to protect and address the music and film industry's concerns.

They show the substantial revenue-generating potential associated with each IPR and emphasize the role that IPRs play in fostering creativity, innovation, and economic progress.

27 Plagiarism

- ## 2.7 Plagiarism
- The "stealing and publication" and "wrongful appropriation" of some other writer's "words, ideas, concepts or expressions" and passing them off as one's own original work are both considered forms of plagiarism. Many individuals consider original work to be the act of duplicating another person's work or appropriating the original ideas. However, phrases such as "copying" and "borrowing" might describe original ideas. The Merriam-Webster Online Dictionary defines plagiarism as "the gravity of the offense : The Merriam-Webster Online Dictionary defines 'plagiarize' as 1) Accepting someone else's words or ideas as one's own 2) utilize (another's product) without crediting the source. 3) To commit literary theft. 4) To provide a false and original concept or product based on an existing source.

other terms, plagiarism is a fraudulent act, and then lying about it. "The Self-Ser-

- It entails taking someone else's work and using it without permission.
- The writer lavishly "borrows" from himself or her prior work, in violation of academic institutions' norms about the expectation of originality. Copying one's own work is not plagiarism.
- Legislation exists to safeguard our intellectual property. They make it unlawful to duplicate someone else's thoughts or information without that person's consent. It can contain music, photographs, written text, videos and plenty of other media.
- "Public domain" refers to works that are no new or have never been protected by copyright. This means you can freely use material from these publications without worry of plagiarism, as long as you give correct attributions. Using someone's work without plagiarizing is only possible if you give them credit by referencing their sources. However, citing sources is also important for the following reasons:
 - Citations are very useful for anyone who wants to learn concerning your topic and their origins.
 - Not every source is reliable or correct; your own views may be more rational or intriguing compared to some of your sources. Proper reference will prevent you from being blamed for someone else's faulty ideas.

- o Citing sources indicates how much research you've done.
- o Citing sources enriches your work by providing external backing for your views.

4.8 Related to Intellectual Property Rights in India

India's Intellectual property rights are governed by the following rules and laws :

1. The copyright act of 1957, the copyright rules of 1958 and the international copyright order of 1999.
2. The patent act, 1970, the intellectual property appellate board (patent procedure) rules, 2010, the patents rules, 2003 and the patents rules 2011.
3. The trademarks act of 1999, the trademarks rules of 2002, the trademarks rules of 2003 and the intellectual property appellate board (Procedure) rules of 2003 and geographical indications of goods (Registration and protection) act 1999 and geographical indications of goods (Registration and protection) rules 2002.

5. The design act of 2000 and the design rules of 2001.
6. The semiconductor integrated circuits layout-design regulations of 2001 and the semiconductor integrated circuits layout-design act of 2000.
7. The protection of plant varieties and farmers' rights act, 2001 and the protection of plant varieties and farmers' rights rules, 2003.
8. The biological diversity act of 2002 and the biological diversity rules of 2004.
9. Protection of imported goods' intellectual property rights copyright laws in India: The worldwide copyright order of 1999, the copyright act of 1957 and the copyright rules of 1958 regulate the preservation of copyright in India. It went into effect in January 1958. The act has been modified five times : In 1983, 1984, 1992, 1994 and 1999.

Before the 1957 Act, copyright protection was controlled by the copyright law of 1914, an extension of the British copyright act of 1911. The copyright act of 1957 contains 79 sections divided into 15 chapters, but the copyright rules of 1958 have 28 rules divided into 9 sections and 2 schedules.

Agreements on IPR : In 1994, the World Trade Organization's Uruguay round approved the trade-related elements of IPR, also known as TRIPS. In 1994, member nations signed the TRIPS agreement in Morocco. It compels member countries to preserve their intellectual property rights. IPR domains include patents, trademarks, copyright, industrial design and geographical indicators. Patents are given for new inventions or improvements to existing items. Patents are protected under the term of the TRIPS treaty.

The person in charge of regulating patent issuance is the controller general. The patent office's headquarters are located in Kolkata. Delhi, Chennai, and Mumbai are home to branches. The patent information system's Nagpur office is located there.

Trademarks : A key component of IPR is the trademark. Any combination of visual, linguistic or other symbols used to distinguish goods or services offered by an individual or company is called a trademark. Only once the trademark has been registered with the relevant body in the nation does it become an exchange commodity. The name Sony immediately conjures up a product from the Sony corporation. Trademarks serve to assist consumers in identifying something they are buying and its origin of manufacturing, as well as to assist the firm in advertising the item using the trademark. The Indian trademark act of 1999 governs trademark registration in India.

Copyright : An idea that has been around for a while, copyright is mostly used to protect literary and creative works. Originally, copyright only applied to books. Nowadays, copyright is automatically awarded for a broad variety of works, including books, maps, paintings, theatrical works and articles. The TRIPS agreement eliminates the need for a formal application or registration. The letter C denotes the presence of copyright protection, which is followed by the name of the copyright holder.

Industrial design : Anything that enhances a product's appeal to the consumer's aesthetic sense is considered industrial design. We have things from manufacturers, including consumer goods, automobiles and furnishings. Accordingly, characteristics pertaining to form, color, schemes, pattern, arrangement, decoration etc. are all considered to be part of design. The designs act 2001 in India allows design to be recorded through the registrar of the industrial designs patent.

2.9 Multiple Choice Questions

- Q.1 What is the main difference between a patent and a copyright ?**
- ☐ A patent protects literary works, while a copyright protects inventions.
 - ☐ A patent protects inventions, while a copyright protects literary works.
 - ☐ A patent protects trademarks, while a copyright protects industrial designs.
 - ☐ A patent protects industrial designs, while a copyright protects trademarks.
- Q.2 Which of the following is not a requirement for obtaining a patent ?**
- ☐ Novelty
 - ☐ Non-obviousness
 - ☐ Utility
 - ☐ Disclosure of prior art
- Q.3 What is the purpose of the Berne convention ?**
- ☐ To establish international standards for patent protection
 - ☐ To establish international standards for copyright protection
 - ☐ To establish international standards for trademark protection
 - ☐ To establish international standards for industrial design protection
- Q.4 Which of the following is a benefit of registering a trademark ?**
- ☐ It provides exclusive rights to use the mark
 - ☐ It provides protection against counterfeiting
 - ☐ It provides protection against infringement
 - ☐ All of the above
- Q.5 What is the term for the unauthorized use of a trademark ?**
- ☐ Infringement
 - ☐ Counterfeiting
 - ☐ Piracy
 - ☐ Passing off
- Q.6 Which of the following is not a type of intellectual property right ?**
- ☐ Patent
 - ☐ Copyright
 - ☐ Trademark
 - ☐ Trade secret

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Q.7 What is the purpose of the TRIPS Agreement?

- ☐ a To establish international standards for patent protection
- ☐ b To establish international standards for trademark protection
- ☐ c To establish international standards for intellectual property protection
- ☐ d To establish minimum standards for intellectual property rights

Q.8 Which of the following is a limitation of intellectual property rights?

- ☐ a They promote innovation and creativity
- ☐ b They provide exclusive rights to creators
- ☐ c They limit access to knowledge
- ☐ d They promote competition

Q.9 What is the term for a secret formula or process used in a business?

- ☐ a Patent
- ☐ b Copyright
- ☐ c Trademark
- ☐ d Trade secret

Q.10 Which of the following organizations is responsible for promoting the protection of intellectual property rights worldwide?

- ☐ a World Trade Organization (WTO)
- ☐ b World Intellectual Property Organization (WIPO)
- ☐ c International Chamber of Commerce (ICC)
- ☐ d World Customs Organization (WCO)

Answer Keys for Multiple Choice Questions

Q.1	b	Q.2	d	Q.3	b	Q.4	d	Q.5	d
Q.6	d	Q.7	d	Q.8	c	Q.9	d	Q.10	b

2.10 Short Questions and Answers

Q.1 What is Intellectual Property Right (IPR)?

Ans.: Intellectual Property Right (IPR) refers to the legal rights granted to the creators of original works, such as inventions, literary and artistic works, and symbols, names, and images used in commerce.

Q.2 What are the types of IPR?

Ans.: The types of IPR include Patents, Copyrights, Trademarks, Industrial Designs, and Geographical Indications.

Q.3 What is the purpose of Patent?

Ans.: The purpose of a Patent is to grant exclusive rights to the inventor for a limited period in exchange for public disclosure of the invention.

Q.4 What is Copyright?

Ans.: Copyright is a type of IPR that protects original literary, dramatic, musical, and artistic works.

Q.5 What is the function of Trademark?

Ans.: The function of a Trademark is to distinguish the goods or services of one undertaking from those of another.

Q.6 What is Industrial Design?

Ans.: Industrial Design refers to the ornamental or aesthetic aspect of a product.

Q.7 What is Geographical Indication?

Ans.: Geographical Indication is a sign used on products that have a specific geographical origin and possess qualities or a reputation that are due to that origin.

Q.8 Why is IPR important?

Ans.: IPR is important because it promotes innovation, creativity, and economic growth by providing exclusive rights to creators and inventors.

Q.9 What is the duration of Patent?

Ans.: The duration of a Patent is typically 20 years from the date of filing.

Q.10 What is the role of WIPO?

Ans.: The World Intellectual Property Organization (WIPO) is a specialized agency of the United Nations that promotes the protection of intellectual property worldwide.

2.11 Long Answered Questions**Q.1 What is IPR ?**

Ans. : Intellectual Property Right (IPR) refers to the legal rights granted to creators by giving them control over their original works. IPR protects the interests of creators by providing incentives for creators to produce original works. IPR protects the interests of creators by providing incentives for creators to produce original works. IPR includes patents, copyrights, trademarks, and trade secrets. Each type of IPR has its own set of rules and regulations. IPR is protected by law, and any violation of IPR can result in legal consequences. The main purpose of IPR is to promote creativity and innovation. IPR also helps to promote economic growth by encouraging entrepreneurship and investment. IPR is an essential part of modern business and commerce. It helps to protect the interests of creators and promote innovation and creativity.

Q.2 What are the various types of IPR ?

Ans. : There are several types of Intellectual Property Rights (IPR). Patents are one type of IPR that protects inventions and new discoveries. Copyrights are another type of IPR that protects original literary, dramatic, musical, and artistic works. Trademarks are a type of IPR that protects distinctive signs, symbols, and logos used by businesses. Industrial design IPR that protects the ornamental or aesthetic aspect of a product. Geographical indications are a type of IPR that identifies a product as originating from a specific geographic region. Trade secrets are a type of IPR that protects confidential information used by businesses. Each type of IPR has its own set of rules and regulations. IPR is used by businesses. Each type of IPR can result in legal consequences. The main purpose of IPR is to promote creativity and innovation.

Q.3 What is the purpose of Patent ?

Ans. : The primary purpose of a Patent is to grant exclusive rights to inventors for a limited period. This allows inventors to recoup their investment in research and development period. This allows inventors to recoup their investment in research and development period. Patents also promote innovation by encouraging inventors to disclose their inventions to the public. In return for this disclosure, inventors are granted exclusive rights to their inventions for a limited period. Patents are essential for promoting innovation and creativity. They provide an incentive for inventors to invest in research and development. Patents also help to promote economic growth by encouraging entrepreneurship and investment. The patent system is designed to promote innovation and creativity. It provides a framework for inventors to protect their inventions and recoup their investment.

Q.4 What do you mean by Copyright ?

Ans. : Copyright is a type of Intellectual Property Right (IPR) that protects original literary, dramatic, musical, and artistic works. Copyright gives the creator of a work the exclusive right to reproduce, distribute, and display the work. Copyright also gives the creator the right to create derivative works. Copyright is essential for promoting creativity and innovation in the arts. It provides an incentive for creators to invest in their work. Copyright also helps to promote economic growth by encouraging entrepreneurship and investment. The copyright system is designed to promote creativity and innovation. It provides a framework for creators to protect their work and recoup their investment.

Q.5 What are the functions of Trademark ?

Ans. : The main function of a Trademark is to distinguish the goods or services of one undertaking from those of another. Trademarks are essential for promoting business and commerce. They provide a way for businesses to identify themselves and their products. Trademarks also help to promote consumer trust and loyalty. The trademark system is designed to promote fair competition. It provides a framework for businesses to protect their trademarks and prevent unauthorized use.

Q.6 What do you mean by Industrial Design ?

Ans. : Industrial Design refers to the ornamental or aesthetic aspect of a product. Industrial designs are essential for promoting innovation and creativity in product design. They provide a way for designers to protect their designs and prevent unauthorized use. Industrial designs also help to promote consumer trust and loyalty. The industrial design system is designed to promote innovation and creativity. It provides a framework for designers to protect their designs and recoup their investment.

Q.7 What is the meaning of Geographical Indication ?

Ans. : Geographical Indication is a sign used on products that have a specific geographical origin. Geographical indications are essential for promoting consumer trust and loyalty. They provide a way for consumers to identify products that originate from a specific geographic region. Geographical indications also help to promote economic growth by encouraging entrepreneurship and investment. The geographical indication system is designed to promote fair competition. It provides a framework for producers to protect their geographical indications and prevent unauthorized use.

Q.8 Discuss the importance of IPR ?

Ans. : IPR is important because it promotes innovation, creativity, and economic growth. IPR provides an incentive for creators and inventors to invest in their work. IPR also helps

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to promote consumer trust and loyalty. The IPR system is designed to promote competition. It provides a framework for creators and inventors to protect their work and recoup their investment. IPR is essential for promoting business and commerce. It provides a way for businesses to identify themselves and their products.

Q.9 What are benefits of IPR?

Ans.: The benefits of IPR include promoting an incentive for creators and inventors to invest in their work. IPR also helps to protect their work and recoup their investment.

Q.10 What are limitations of IPR?

Ans.: The limitations of IPR include limiting access to knowledge, creating monopolies and stifling innovation. IPR can also be expensive to obtain and maintain, and it can be difficult to enforce.

Q.11 Why is IPR protection important?

Ans.: IPR protection is important because it helps to promote innovation and creativity. It encourages entrepreneurship and investment, and provides an incentive for creators and inventors to invest in their work. IPR protection also helps to protect their work and recoup their investment.

Q.12 What is Intellectual Property Right (IPR)? Discuss its importance and types.

Ans.: Intellectual Property Right (IPR) refers to the legal rights granted to creators of original works, such as inventions, literary and artistic works, and symbols, names, and images used in commerce. IPR is important because it promotes innovation, creativity, and economic growth by providing exclusive rights to creators and inventors. The main types of IPR include patents, copyrights, trademarks, industrial designs, and geographical indications. Each type of IPR has its own set of rules and regulations, and they all play a crucial role in promoting innovation and creativity.

Q.13 Discuss the role of World Intellectual Property Organization (WIPO) in promoting IPR worldwide.

Ans.: The World Intellectual Property Organization (WIPO) plays a crucial role in promoting the protection of intellectual property worldwide. WIPO is a specialized agency of the United Nations that helps countries develop their intellectual property systems. WIPO also provides a forum for countries to discuss and develop international intellectual property

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Additionally, WIPO provides technical assistance to countries to help them develop their intellectual property infrastructure. WIPO's main goal is to promote the development of intellectual property worldwide, and it has been successful in achieving this goal through its various programs and activities.

Q.14 Discuss the importance of IPR protection in the modern business world.

Ans.: IPR protection is crucial in the modern business world because it helps to promote innovation and creativity, encourages entrepreneurship and investment, and provides an incentive for creators and inventors to invest in their work. IPR protection also helps to protect their work and recoup their investment. In today's globalized economy, IPR protection is more important than ever, as businesses need to protect their intellectual property from unauthorized use and theft. Without IPR protection, businesses would not have the incentive to invest in research and development, and innovation would suffer as a result.

Q.15 What are the different types of IPR, and how do they differ from each other?

Ans.: The main types of IPR include patents, copyrights, trademarks, industrial designs, and geographical indications. Patents protect inventions and new discoveries, while copyrights protect original literary, dramatic, musical, and artistic works. Trademarks protect distinctive signs, symbols, and logos used by businesses, while industrial designs protect the ornamental or aesthetic aspect of a product. Geographical indications identify a product as originating from a specific geographic region. Each type of IPR has its own set of rules and regulations, and they all play a crucial role in promoting innovation and creativity.

2-12 Descriptive Questions and Answers

Q.1 Discuss the concept of Intellectual Property Rights (IPR) and its significance in the modern business world.

Ans.: Intellectual Property Rights (IPR) refer to the legal rights granted to creators of original works, such as inventions, literary and artistic works, and symbols, names, and images used in commerce. IPR is significant in the modern business world because it promotes innovation, creativity, and economic growth by providing exclusive rights to creators and inventors. The main types of IPR include patents, copyrights, trademarks, industrial designs, and geographical indications. Each type of IPR has its own set of rules and regulations, and they are protected through various laws and treaties. The World Intellectual Property Organization (WIPO) plays a crucial role in promoting and protecting

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IPR worldwide. IPR is essential for businesses to protect their brand identity, trade secrets and other confidential information. IPR also helps to promote consumer trust and loyalty and encourage entrepreneurship and investment, and providing an incentive to invest in their work. However, IPR can also limit access to knowledge and create monopolies. The limitations of IPR highlight the need for a balanced approach to IPR protection. IPR laws and policies should be designed to promote innovation and creativity while also ensuring that IPR is not used to stifle innovation or limit access to knowledge.

Q.2 What are the benefits and limitations of Intellectual Property Rights (IPR)?

Ans. : The benefits of IPR include promoting innovation and creativity, encouraging entrepreneurship and investment, and providing an incentive for creators and inventors to invest in their work. IPR can also promote consumer trust and loyalty, and provide a framework for creators and inventors to protect their work and prevent unauthorized use. The main types of IPR, including patents, copyrights, trademarks, industrial designs, and geographical indications, all play a crucial role in promoting innovation and creativity. IPR can also help to promote economic growth and development by encouraging entrepreneurship and innovation. However, IPR has some limitations, including limiting access to knowledge and creating monopolies. IPR can also be expensive to obtain and maintain. The enforcement of IPR can be difficult, especially in countries with weak IP laws. IPR can also stifle innovation by limiting access to existing knowledge and technologies. The limitations of IPR highlight the need for a balanced approach to IPR protection. IPR laws and policies should be designed to promote innovation and creativity while also ensuring that IPR is not used to stifle innovation or limit access to knowledge.

Q.3 Discuss the role of international organizations and agreements in promoting and protecting Intellectual Property Rights (IPR).

Ans. : International organizations and agreements play a crucial role in promoting and protecting IPR worldwide. The World Intellectual Property Organization (WIPO) is a specialized agency of the United Nations that helps countries develop their intellectual property systems. WIPO provides technical assistance to countries and administers several international treaties related to IPR. The Agreement on Trade-Related Aspects of Intellectual Property Rights (TRIPS) is an international agreement that sets minimum standards for IPR protection worldwide. TRIPS requires countries to provide certain levels of protection for patents, copyrights, trademarks, and other forms of IPR. The World Trade Organization (WTO) also plays a crucial role in promoting and protecting IPR worldwide.

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The WTO provides a forum for countries to discuss and resolve IPR disputes. International organizations and agreements have helped to promote and protect IPR worldwide by providing a framework for countries to develop their intellectual property systems and protect IPR. The role of international organizations and agreements in promoting and protecting IPR is essential for promoting innovation and creativity worldwide.

Q.4 What are the challenges and opportunities of protecting Intellectual Property Rights (IPR) in the digital age?

Ans. : The digital age has presented several challenges and opportunities for protecting IPR. Digital technologies have made it easier for IPR to be copied, distributed, and used without permission. However, digital technologies have also made it easier for creators and inventors to protect their IPR online. Digital Rights Management (DRM) technologies can be used to protect digital works from unauthorized copying and distribution. The internet and other digital technologies have also made it easier for creators and inventors to distribute their works and reach a wider audience. However, the digital age has also presented several challenges for IPR protection, including the need for new laws and policies to address digital IPR issues. The challenges and opportunities of protecting IPR in the digital age highlight the need for a balanced approach to IPR protection. IPR laws and policies should be designed to promote innovation and creativity while also ensuring that IPR is not used to stifle innovation or limit access to knowledge.

Q.5 Discuss the relationship between Intellectual Property Rights (IPR) and economic development.

Ans. : Intellectual Property Rights (IPR) play a crucial role in promoting economic growth and development. IPR provides an incentive for creators and inventors to invest in their work, leading to the development of new products and services. This can lead to economic growth and development, as new industries and businesses are created.

There are several ways in which IPR contributes to economic development :

1. **Promoting innovation :** IPR provides an incentive for creators and inventors to invest in research and development, leading to the creation of new products and services.
2. **Encouraging entrepreneurship :** IPR provides entrepreneurs with the confidence to invest in their businesses, knowing that their intellectual property is protected.
3. **Attracting foreign investment :** IPR can attract foreign investment, as investors are more likely to invest in countries with strong IPR protection.
4. **Creating jobs :** IPR can lead to the creation of new jobs, as new industries and businesses are created.

5. Increasing competitiveness : IPR can increase competitiveness, as businesses are able to differentiate themselves from their competitors through their intellectual property.

However, IPR can also have negative effects on economic development, particularly if it is not balanced with other considerations. For example :

- 1. Limiting access to knowledge :** IPR can limit access to knowledge, particularly in areas such as healthcare and education.
- 2. Creating monopolies :** IPR can create monopolies, which can stifle innovation and limit economic growth.
- 3. Increasing inequality :** IPR can increase inequality, particularly if it is not accessible to all.

In conclusion, IPR plays a crucial role in promoting economic growth and development. However, it is important to balance IPR with other considerations, such as access to knowledge and competition, in order to ensure that it contributes to economic development in a positive way.

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